

Exhibit A Elizabeth Mary Young Forfeiture Use Right

Exhibit A

Elizabeth Mary Young Interest Forfeiture and Lifetime Use Right Agreement

Attached to and incorporated into the Non-Judicial Settlement Agreement
dated _____, 2026

Flanagan Family 321 Trust

Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)

I. Parties

This Exhibit is entered into by:

Elizabeth Mary Young ("Elizabeth Mary Young")

Edward Joseph Young IV ("Edward Joseph Young IV"), son of Elizabeth Mary Young

John Nelson Young ("John Nelson Young"), son of Elizabeth Mary Young

and

John M. Flanagan, Successor Co-Trustee

Christopher J. Flanagan, Successor Co-Trustee

and acknowledged by all other parties to the Non-Judicial Settlement Agreement.

II. Background

Elizabeth Mary Young is one of the five (5) children of Dorothy E. Flanagan, the Settlor of

Elizabeth Mary Young, Edward Joseph Young IV, and John Nelson Young no longer wish to parti

III. Forfeiture of Beneficial Interest

Elizabeth Mary Young hereby voluntarily forfeits her entire beneficial interest in the Flana

This forfeiture includes:

- a. All rights to income distributions under Article IV.
- b. All beneficial interest in the Camp Property and any other Trust assets.
- c. All voting rights as a beneficiary, including the right to vote on the sale of the Camp Property (Article 5.5), the nomination or removal of Trustees (Article 10.2), and the approval of expenses and assessments (Article 5.3).
- d. All current and future claims to sale proceeds, equity, or distributions should the Property be sold in whole or in part.
- e. All rights to purchase the Camp Property or any subdivided part thereof under Article 5.6.

Edward Joseph Young IV and John Nelson Young likewise forfeit any current or future beneficial

IV. Release from Financial Obligations

In consideration for the forfeiture described above, Elizabeth Mary Young, Edward Joseph Young

- a. Assessments for utilities, real property taxes, insurance, repairs, maintenance, and capital improvements under Article 5.3.
- b. Any outstanding or unpaid assessments as of the date of this Agreement.
- c. Any future assessments of any kind.

V. Lifetime Use Right

In further consideration for the forfeiture, Elizabeth Mary Young, Edward Joseph Young IV, and

- a. One (1) aggregate week of summer use of the Camp Property per calendar year, for the remainder of their respective lifetimes.
- b. "Aggregate" means one (1) total week shared among the three of

them, not one (1) week each.

- c. "Summer" shall mean the period from Memorial Day weekend through Labor Day weekend of each calendar year.
- d. Elizabeth Mary Young, Edward Joseph Young IV, or John Nelson Young shall submit their Co-Trustees before May 1 of each year.
- e. The Co-Trustees will make every reasonable effort to accommodate the specific dates requested, in coordination with the schedules of all active beneficiaries.
- f. Final scheduling is subject to the sole discretion of the Co-Trustees.
- g. This use right is personal to Elizabeth Mary Young, Edward Joseph Young IV, and John Nelson Young and shall not be assigned, transferred, sold, or conveyed to any other person.
- h. This use right does not include any right to invite guests beyond immediate family without prior approval of the Co-Trustees.
- i. During their week of use, Elizabeth Mary Young, Edward Joseph Young IV, and John Nelson Young shall use the Camp Property with reasonable care and leave it in the condition in which it was found.

VI. Termination of Use Right

The use right granted herein shall terminate:

- a. Upon the death of each individual (Elizabeth Mary Young, Edward Joseph Young IV, or John Nelson Young) only that individual only. The surviving individuals retain their portion of the aggregate week.
- b. Upon the death of the last surviving individual among Elizabeth Mary Young, Edward Joseph Young IV, and John Nelson Young.
- c. The use right does not pass to the heirs, spouses, or descendants of Elizabeth Mary Young, Edward Joseph Young IV, or John Nelson Young.

VII. Redistribution of Forfeited Interest

The beneficial interest formerly held by Elizabeth Mary Young is redistributed equally to the

Mary Jean Foss branch (Jennifer Yommer and Martha Foss): 5%

John M. Flanagan: 5%
Jane E Birckhead branch (Joseph M Birckhead, after Diana E Birckhead forfeiture): 5%
Christopher J. Flanagan: 5%

This redistribution results in each of the four remaining branches holding a 25% beneficial

VIII. Re-Entry Provision

If Elizabeth Mary Young, Edward Joseph Young IV, or John Nelson Young desire to return to be

- a. Approval shall require a majority vote of the active beneficiaries at that time.
- b. The terms of re-entry, including the percentage of beneficial interest to be restored, shall be determined by the active beneficiaries at the time of the vote.
- c. Re-entry does not automatically restore the original 20% interest.

IX. Signatures

Elizabeth Mary Young

Signature: _____

Date: _____

Address: _____

Edward Joseph Young IV

Signature: _____

Date: _____

Address: _____

John Nelson Young

Signature: _____

Date: _____

Address: _____

John M. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Christopher J. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____